

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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ALLISON LUGO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
QUINONES, POLICE OFFICER MYERS (SHIELD # 11438),
SERGEANT ROY KIM, POLICE OFFICER JOHN DOE #1,
POLICE OFFICERS JOHN DOES #2-6 (names and numbers
of who are unknown at present), and other unidentified members
of the New York City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

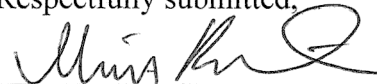
Plaintiff designates
New York County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 11, 2018

Respectfully submitted,



Ilissa Brownstein, Esq.
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL: 100 Church Street, New York, NY 10007

POLICE OFFICER MICHAEL QUINONES: 34th Precinct, 4295 Broadway, New York, NY 10033

POLICE OFFICER MYERS (SHIELD # 11438): 34th Precinct, 4295 Broadway, New York, NY 10033

SERGEANT ROY KIM

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
ALLISON LUGO,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL QUINONES, POLICE OFFICER MYERS (SHIELD # 11438), SERGEANT ROY KIM, POLICE OFFICER JOHN DOE #1, POLICE OFFICERS JOHN DOES #2-6 (names and numbers of who are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

-----X

Plaintiff **Allison Lugo**, by her attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PARTIES

1. Allison Lugo is a citizen of the United States and a resident of New York, New York.
2. Police Officer Michael Quinones is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
3. Police Officer Michael Quinones is being sued in his individual capacity and official capacity.
4. Police Officer Myers (Shield #11438) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. Police Officer Myers (Shield #11438) is being sued in her individual capacity and official capacity.
6. Sergeant Roy Kim is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Sergeant Roy Kim is being sued in his individual capacity and official capacity.
8. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.

10. New York Police Officers John Doe #2-6 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. Police Officers John Doe #2-6 are being sued in his individual capacity and official capacity.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50 relative to her malicious prosecution and Constitutional law claims.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(h) hearing examination of the Plaintiff on July 21, 2017.
17. At all times hereinafter mentioned, defendant, CITY OF NEW YORK, and defendants, PO MICHAEL QUINONES, PO MYERS, SGT. ROY KIM and defendants POLICE OFFICERS JOHN DOE'S 1-6 stood in such relationship with each other to make each liable for the acts and/or omissions of the other.

STATEMENT OF FACTS

18. On May 12, 2017, at approximately 4pm at Broadway and West 187th Street, New York, New York, Ms. Lugo was driving her car, abiding by all traffic rules. She was forcefully rear ended by a police vehicle from the 34th Precinct driven by Police Officer Michael Quinones and his partner Police Officer Myers. Ms. Lugo lost control of her car as the result of the force and her car spinning around; she hit two cars in front of her.
19. Afterwards, to cover their misconduct, the police issued Lugo a ticket for failure to yield to an emergency vehicle. The police also intentionally left out Ms. Lugo's account from police reports and incident reports documenting the incident.
20. Police Officer Michael Quinones came out of his car cursing and using derogatory words. Police Office Myers tried to calm him down and apologized for his degrading approach. PO Myers has since called Ms. Lugo on several occasions to see how she is feeling.
21. As a result of PO Quinones' derogatory works, Ms. Lugo filed a complaint with the CCRB. The results of that CCRB report were unsubstantiated and exonerated (two different discourtesy complaints).
22. Allison Lugo's car was totaled.
23. Medical records show that Allison Lugo suffered a large abdominal hematoma. Several radiology exams were performed. She was put on a pain management regimen including but not limited to: physical therapy, chiropractic treatments, numerous prescriptions and two weeks off of work without pay so that her body can rest and heal. She also had to seek subsequent mental health treatment to deal with the numerous issues resulting from this traumatic accident.
24. On August 2, 2018, Ms. Lugo was found Not Guilty of failing to yield an emergency vehicle.

FIRST CAUSE OF ACTION

25. Plaintiff repeats and alleges paragraphs 1 through 24 as if fully set forth herein.
26. On or about May 12, 2017, defendant, CITY OF NEW YORK was the owner of a motor vehicle, specifically a marked police car, registered in the State of New York.
27. On or May 12, 2017, defendant, MICHAEL QUINONES, was the operator of the motor vehicle, specifically a marked police car, registered in the State of New York.
28. On or about May 12, 2017 plaintiff, ALLISON LUGO, was the owner and operator of a motor vehicle, specifically a 2005 Honda CR-V registered in New York State.

29. On or about May 12, 2017, Broadway and 187th Street in the City and State of New York was and still is a public thoroughfare.
30. On or about May 12, 2017, defendant, PO MICHAEL QUINONES, was operating the marked police car at the subject location Broadway and W. 187th Street, in the City and State of New York, in the same lane and directly behind the vehicle in which the plaintiff was driving.
31. On or about May 12, 2017, at the subject location, defendant, PO MICHAEL QUINONES, without warning, collided into the back of the vehicle in which the plaintiff was driving, which caused injuries to the plaintiff.
32. As a result of the impact, the plaintiff, ALLISON LUGO, was caused serious and grave personal injuries.
33. The collision was due to the carelessness, recklessness, willful and wanton behavior, distraction due to use of cellphone or other handheld technology, and/or negligence of the defendant, MICHAEL QUINONES, in the ownership, management, maintenance, control, and operation of the motor vehicle owned by THE CITY OF NEW YORK.
34. The collision was caused wholly and solely by reason of the negligence of the defendants, MICHAEL QUINONES, operator of Police Vehicle, and owned by the CITY OF NEW YORK, without any fault or negligence on the part of the plaintiff contributing thereto.
35. As a result of said collision, the plaintiff, ALLISON LUGO, sustained serious personal injuries as defined in subsection (d) of § 5102 of the Insurance Law, and economic loss greater than basic economic loss, as defined in Subsection (a) of § 5102 of the Insurance Law.
36. As a result of defendants, CITY OF NEW YORK, MICHAEL QUINONES, PO MYERS and JOHN DOES 1-6's negligence, plaintiff, ALLISON LUGO, sustained personal injuries in an amount that exceeds the monetary jurisdictional limits of any and all lower Courts that would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

SECOND CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

37. Plaintiff repeats and alleges paragraphs 1 through 36 as if fully set forth herein.
38. Defendant, CITY OF NEW YORK, was negligent in hiring and entrusting the operator of his motor vehicle, including defendant, MICHAEL QUINONES, who was careless, unskillful, negligent, and who did not possess the requisite knowledge and skill of a safe driver in the community, and who failed to ensure the safety of others, including the plaintiff, ALLISON LUGO. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

39. By reason of the above, the plaintiff, ALLISON LUGO, was severely injured and damaged, rendered sick, sore, lame, and disabled, sustained severe emotional shock and mental anguish, great physical pain and emotional upset, which are permanent in nature and duration.
40. As a result of said collision, the plaintiff, ALLISON LUGO, sustained serious personal injuries as defined in subsection (d) of § 5102 of the Insurance Law, and/or economic loss greater than basic economic loss, as defined in Subsection (a) of § 5102 of the Insurance Law.
41. As a result of defendants, CITY OF NEW YORK, PO MICHAEL QUINONES, PO MYERS and POLICE OFFICERS JOHN DOE'S 1-6's negligence, plaintiff, ALLISON LUGO, sustained personal injuries in an amount that exceeds the monetary jurisdictional limits of any and all lower Courts that would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

42. Plaintiff repeats and alleges paragraphs 1 through 41 as if fully set forth herein.
43. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
44. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused her serious emotional distress and economic loss as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
45. Defendants commenced and continued a criminal proceeding against plaintiff. Defendant's crafted the police and incident reports in such a way to further the malicious prosecution against Ms. Lugo.
46. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for the charge for which she was prosecuted.
47. The prosecution and criminal proceedings terminated favorably to plaintiff on August 2, 2018.
48. Plaintiff was subjected to a violation of Constitutional rights sufficient to implicate her state constitutional and tort rights.
49. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FORTH CAUSE OF ACTION**FAILURE TO INTERVENE**

50. Plaintiff repeats and alleges paragraphs 1 through 49 as if fully set forth herein.
51. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
52. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
53. As a result of the foregoing, plaintiff was subjected to an illegal, fabricated and malicious issuance of a traffic ticket and underlying police and incident reports.
54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
55. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION**NEGLIGENCE**

56. Plaintiff repeats and alleges paragraphs 1 through 55 as if fully set forth herein.
57. Defendants owed a duty of care to plaintiff.
58. Defendants breached that duty of care by subjecting her to a car crash and prosecution for failing to yield to an emergency vehicle.
59. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
60. All of the foregoing occurred without any fault by plaintiff.
61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

62. Plaintiff repeats and alleges paragraphs 1 through 61 as if fully set forth herein.
63. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
64. As a result of the foregoing, plaintiff sustained great emotional and economic injuries.
65. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of Fourth, Fifth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal malicious-prosecution claim

66. Plaintiff repeats and alleges paragraphs 1 through 65 as if fully set forth herein.
67. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
68. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
69. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of her Fourth, Fifth and Fourteenth Amendment rights.
70. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false issuance of a traffic violation ticket for failing to yield an emergency vehicle, fabricated incident and police reports with the omission of Plaintiff's account and the discourtesy used by officers to intimidate Plaintiff and the failure of the police officers who took the complaint to add plaintiff's observations into the car incident police reports, malicious prosecution and fabrication of evidence violated her Fourth, Fifth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to her constitutional injuries, yet they did so with malice and retaliatory intent.

71. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
72. In the event Plaintiff prevails at trial on one, some or all of her 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, she also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

EIGHTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

73. Plaintiff repeats and alleges paragraphs 1 through 72 as if fully set forth herein.
74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
76. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
77. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
78. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
79. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was Maliciously prosecuted.

80. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

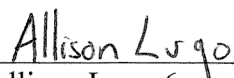
ARTICLE 16 EXCEPTIONS

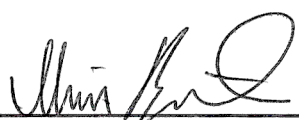
81. Plaintiff repeats and alleges paragraphs 1 through 80 as if fully set forth herein.
82. This action falls within the exceptions set forth under Article 16 of the CPLR. Further, each cause of action set forth herein falls within the exceptions set forth under Article 16 of the CPLR.
83. Pursuant to CPLR 1602(2)(iv), these defendants and any future-named defendants are jointly and severally liable for all of plaintiffs' damages, including but not limited to plaintiffs' non-economic loss, irrespective of the provisions of CPLR 1601, by reason of the fact that defendants owed the plaintiffs a non-delegable duty of care.
84. Pursuant to CPLR 1602(7), these defendants and any future-named defendants are jointly and severally liable for all of plaintiffs' damages, including but not limited to plaintiffs' non-economic loss, including but not limited to plaintiffs' non-economic loss, irrespective of the provisions of CPLR 1601, by reason of the fact that defendants acted with reckless disregard for the safety of others.
85. Pursuant to CPLR 1602(6), these defendants and any future-named defendants are jointly and severally liable for all of plaintiffs' damages, including but not limited to plaintiffs' non-economic loss, irrespective of the provisions of CPLR 1601, by reason of the fact that each defendant should be held liable by reason of each defendant's use, ownership and /or operation of a motor vehicle.
86. Pursuant to CPLR 1602(2)(iv), this defendant and any future-named defendants are jointly and severally liable for all of plaintiffs' damages, including but not limited to plaintiffs' non-economic loss, irrespective of the provisions of CPLR 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of the defendant operators of said vehicles.

WHEREFORE, Plaintiff, ALLISON LUGO, demands judgment in her favor against defendants, CITY OF NEW YORK, POLICE OFFICER MICHAEL QUINONES, POLICE OFFICER MYERS, SERGEANT ROY KIM, POLICE OFFICER JOHN DOE #1 and POLICE OFFICERS JOHN DOE 2-6, in an amount that exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction; inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
August 11, 2018

Respectfully submitted:


Allison Lugo


Ilissa Brownstein, Esq.
65 Broadway
Suites 813 & 814
New York, New York 10006
(212) 691-3333

TO:

CITY OF NEW YORK: CORPORATION COUNSEL: 100 Church Street, New York, NY 10007

POLICE OFFICER MICHAEL QUINONES: 34th Precinct, 4295 Broadway, New York, NY 10033

POLICE OFFICER MYERS (SHIELD # 11438): 34th Precinct, 4295 Broadway, New York, NY 10033

SERGEANT ROY KIM